

SOLVED PRACTICE WORKBOOK

CVC and CBI - Learner-v2 Refreshed

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing

CVC and CBI REFRESHED TEACHING NAVIGATION - BASIC/CORE FIRST	
01 CORE IDEA- ONE ANTI-CORRUPTION SYSTEM, DIFFERENT LEGAL ROLES "CBI is a statutory body under the DSPS Act" is imprecise, the Act	02 EVOLUTION: FROM WARTIME POLICE UNIT TO A LAYERED VIGILANCE SYSTEM Section 26 of the CVC Act connects the statutory Commission with,
03 THE INSTITUTIONAL ARCHITECTURE CVC supervises vigilance and specified corruption investigations, CBI	04 CVC STATUS, COMPOSITION AND APPOINTMENT Technically, Cvc Status, Composition And Appointment is analysed by
05 CVC TENURE, REAPPOINTMENT, POST-TENURE BARS AND REMOVAL On leaving office, the CVC and CCI are ineligible for specified	06 CVC FUNCTIONS UNDER SECTION 8 "Superintendence" should be understood as lawful oversight of the
07 CVOS AND DEPARTMENTAL VIGILANCE Technically, Cvc And Departmental Vigilance is analysed by relating	08 CBI AND DSPE: ORGANISATION, POLICE POWER AND JURISDICTION Under section 5, it may extend DSPS powers and jurisdiction to State
09 SUPERINTENDENCE, ADMINISTRATION AND INVESTIGATIVE JUDGMENT The Lokpal Act creates a special superintendence and direction rule	10 CBI DIRECTOR: APPOINTMENT, TENURE, TRANSFER AND SENIOR POSTS Sections 6A, 6B, 6Bb and 6C of the DSPS Act distribute Director
11 STATE CONSENT AND INDIAN FEDERALISM The DSPS Act therefore uses a territorial consent architecture when	12 CONSTITUTIONAL COURTS AND THE CONSENT RULE The Court held that this does not violate the federal structure or
13 CONSENT CASE LAW: EXACT HOLDINGS, NARROW INFERENCES In <i>Krishna Kumar</i> the Supreme Court dealt with the particular	14 THE VINEET NARAIN SAFEGUARD ARCHITECTURE The <i>Vineet Narain</i> model is not "CBI outside government" it is a
15 JUDICIAL CONTROLS ON DIRECTOR INDEPENDENCE The legal five-year maximum is not a guarantee that every Director	16 "CAGED PARROT": USE AS CONTEXT, NOT RATIO Technically, "Caged Parrot" Use As Context, Not Ratio is analysed by
17 LOKPAL, CVC, CBI AND CVO: COMPLEMENTARY, NOT HIERARCHICAL DUPLICATES Lokpal receives and routes covered complaints, CVC supervises	18 INVESTIGATION LIFECYCLE AND SAFEGUARDS A Preliminary Enquiry remains valuable in an appropriate case but
19 COMPARISON: CVC, CBI, LOKPAL, ED, NIA AND STATE AGENCIES CVC advises and supervises specified vigilance work, CBI uses DSPS	20 INDEPENDENCE, ACCOUNTABILITY AND PERFORMANCE Technically, Independence, Accountability And Performance is
21 CURRENT AND LEGAL CONTROL SHEET "Current as of 18 August 2023" is a control label for the package	22 ANSWER-WRITING FRAMEWORKS A strong answer states source and jurisdiction, explains mechanism,
23 HIGH-YIELD TRAPS AND MINI-RECAP The recap distinguishes executive-created CBI from statutory DSPS	24 VERIFIED SOURCE AND AUTHORITY MAP The CVC Act, DSPS Act, Lokpal amendments, Prevention of

Original deterministic study visual; labels are explanatory, not textual quotations.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

CONTENTS / WORKBOOK INDEX

Major learning parts and meaningful subtopics are listed in document order. Page numbers are generated from the final PDF layout; PDF bookmarks mirror the same hierarchy.

Polity 37 - Central Vigilance Commission (CVC) and Central Bureau of Investigation (CBI) 5

BASIC MCQS / REMEDIATION 5

MCQ 1	5
MCQ 2	5
MCQ 3	5
MCQ 4	5
MCQ 5	6
MCQ 6	6
MCQ 7	6
MCQ 8	6
MCQ 9	6
MCQ 10	7
MCQ 11	7
MCQ 12	7
MCQ 13	7
MCQ 14	7
MCQ 15	8
MCQ 16	8
MCQ 17	8
MCQ 18	8
MCQ 19	8
MCQ 20	8
MCQ 21	9
MCQ 22	9
MCQ 23	9
MCQ 24	9
MCQ 25	9
MCQ 26	9
MCQ 27	10

MCQ 28	10
MCQ 29	10
MCQ 30	10
MCQ 31	10
MCQ 32	10
MCQ 33	11
MCQ 34	11
MCQ 35	11
MCQ 36	11
Remedial MCQ 1	11
Remedial MCQ 2	11
Remedial MCQ 3	12
Remedial MCQ 4	12
Remedial MCQ 5	12
Remedial MCQ 6	12
Remedial MCQ 7	12
Remedial MCQ 8	12
Remedial MCQ 9	13
Remedial MCQ 10	13
Remedial MCQ 11	13
Remedial MCQ 12	13
Visual 74 - MCQ Rotation Audit	13
PYQS AND ANSWER PRACTICE	13
Visual 71 - Verified PYQ Coverage	14
Visual 72 - PYQ Demand Map	14
Examiner Value Addition	15
Visual 73 - How to Audit a Matching Question Without Guessing	15
Solved Mains 1 - 10 Marks / 150 Words	15
Visual 75 - Two-Layer Thesis	16
Solved Mains 2 - 15 Marks / 250 Words	16
Visual 76 - CVC Effectiveness Test	16
Solved Mains 3 - 15 Marks / 250 Words	17

Visual 77 - Qualified State Veto	17
Solved Mains 4 - 20 Marks / 300 Words	18
Visual 78 - Insulation with Answerability	18
Solved Mains 5 - 10 Marks / 150 Words	19
Visual 79 - Role-to-Output Chain	19
Solved Mains 6 - 15 Marks / 250 Words	19
Visual 80 - Director Safeguard Triangle	20
Solved Mains 7 - 15 Marks / 250 Words	20
Visual 81 - Domain Separation	20
Solved Mains 8 - 20 Marks / 300 Words	21
Visual 82 - Reform Architecture	21

Polity 37 - Central Vigilance Commission (CVC) and Central Bureau of Investigation (CBI)

BASIC MCQS / REMEDIATION

D. Original MCQs - 36 Questions

MCQ 1

Which statement most accurately describes the legal creation of the CBI?

A. It was established by a Government of India resolution in 1963, while DSPE police powers arise from the DSPE Act, 1946. B. It was created as a statutory body by the CVC Act, 2003. C. It was established by the Lokpal and Lokayuktas Act, 2013. D. It was constituted directly by Article 312 of the Constitution.

Answer: A.

Explanation: [FACT] CBI is an organisation created by the 1 April 1963 resolution. The DSPE Act constitutes the police establishment and supplies its central statutory powers.

MCQ 2

The Central Vigilance Commission consists of:

A. A Chairperson, one judicial member and one expert member. B. A Central Vigilance Commissioner and not more than two Vigilance Commissioners. C. A Central Vigilance Commissioner alone. D. A Central Vigilance Commissioner and exactly three Vigilance Commissioners.

Answer: B.

Explanation: [FACT] CVC Act section 3 specifies one CVC as Chairperson and not more than two VCs as Members.

MCQ 3

Who are members of the statutory committee recommending appointment of the Central Vigilance Commissioner?

A. Prime Minister, Chief Justice of India and Home Minister B. Prime Minister, Speaker of Lok Sabha and Lok Sabha Leader of Opposition C. Prime Minister, Home Minister and Lok Sabha Leader of Opposition/statutory substitute D. President, Prime Minister and Chief Justice of India

Answer: C.

Explanation: [FACT] CVC appointments use the PM-Home Minister-LoP committee. The CJI belongs to the CBI Director committee, not the CVC committee.

MCQ 4

Which is correct regarding CVC/VC tenure?

A. Four years with automatic reappointment B. Six years or age 65, whichever is earlier C. Five years with no age ceiling D. Four years or age 65, whichever is earlier

Answer: D.

Explanation: [FACT] The four-year/65 rule applies. A VC appointed CVC remains subject to the aggregate four-year cap.

MCQ 5

Removal of the CVC for proved misbehaviour or incapacity ordinarily requires:

- A. Presidential reference, Supreme Court inquiry and presidential removal order B. A simple majority resolution of Lok Sabha C. CVC selection committee recommendation alone D. Cabinet advice followed by immediate termination

Answer: A.

Explanation: [FACT] Section 6 prescribes the Supreme Court inquiry route for proved misbehaviour or incapacity, distinct from listed direct statutory grounds.

MCQ 6

While supervising DSPE anti-corruption investigations, the CVC:

- A. May order conviction of a public servant B. Cannot require investigation or disposal of a particular case in a particular manner C. Replaces the trial court in evaluating evidence D. May exercise unlimited police power throughout India

Answer: B.

Explanation: [FACT] The section 8 proviso protects case-specific investigative judgment from dictated manner or result.

MCQ 7

If a covered organisation disagrees with CVC advice after an inquiry report, it must:

- A. Refer every disagreement to Parliament B. Obtain Supreme Court approval C. Record reasons in writing and communicate them to CVC D. Treat the advice as void without response

Answer: C.

Explanation: [FACT] CVC advice is not automatically binding, but section 17 requires written reasons for disagreement.

MCQ 8

The CVC's annual report:

- A. Is submitted directly to the Supreme Court B. Is sent only to DoPT and remains confidential by statute C. Excludes all reference to DSPE functioning D. Is presented to the President and laid before both Houses, with a separate relevant DSPE part

Answer: D.

Explanation: [FACT] Section 14 creates the annual reporting and parliamentary-laying mechanism.

MCQ 9

Under DSPE Act section 2, the baseline territorial police powers of DSPE apply to:

- A. Union Territories B. Only railway property C. All States automatically D. Foreign territories

Answer: A.

Explanation: [FACT] The State-area route is built through sections 5-6; Union Territories are the section 2 baseline.

MCQ 10

The classes of offences to be investigated by DSPE are specified by:

- A. Every State Governor independently B. The Central Government by notification under section 3 C. The CVC through an annual report D. The Lok Sabha Speaker

Answer: B.

Explanation: [FACT] Section 3 is the notified-offence gate; organisational importance alone does not create offence jurisdiction.

MCQ 11

Which correctly states the DSPE superintendence split?

- A. Central Government supervises every PC Act investigation without limitation. B. CVC supervises every CBI function, including INTERPOL administration. C. CVC supervises relevant PC Act investigations; Central Government supervises other DSPE matters, subject to special law. D. State Governments jointly supervise all CBI cases.

Answer: C.

Explanation: [FACT] DSPE Act section 4 divides superintendence by subject and remains subject to special provisions such as the Lokpal Act.

MCQ 12

CBI's administrative placement under DoPT necessarily means:

- A. State consent is unnecessary B. CVC has no statutory role C. Every investigation is unconstitutional D. Administrative placement alone does not prove lawful case-specific PMO direction

Answer: D.

Explanation: [ANALYSIS] Administration and investigative judgment are distinct. Any interference claim needs evidence and legal analysis.

MCQ 13

The high-powered committee recommending appointment of the CBI Director includes:

- A. Prime Minister, Lok Sabha LoP/substitute, and CJI or CJI nominee B. Prime Minister, Home Minister and CVC C. Cabinet Secretary, Home Secretary and CJI D. President, CVC and Attorney General

Answer: A.

Explanation: [FACT] This is the present section 4A committee. It should not be confused with the CVC appointment committee.

MCQ 14

The statutorily protected minimum tenure of the CBI Director is:

- A. Three years B. Two years C. One year D. Five years

Answer: B.

Explanation: [FACT] Section 4B creates a two-year floor; five years is only the aggregate maximum after conditional extensions.

MCQ 15

Under the 2021 DSPE amendment, a Director's extension:

- A. Can continue without an aggregate ceiling B. Is automatic until five years C. Requires public interest, committee recommendation and recorded reasons, one year at a time D. May be granted for any period by DoPT alone

Answer: C.

Explanation: [FACT] The conditions are cumulative and the aggregate period cannot exceed five years.

MCQ 16

Transfer of the CBI Director during protected tenure requires:

- A. CVC advice only B. State consent C. Parliamentary approval D. Prior consent of the section 4A committee

Answer: D.

Explanation: [FACT] The committee safeguard also informed the Supreme Court's substance-based reasoning in *Alok Verma*.

MCQ 17

Which best distinguishes general and case-specific State consent?

- A. General consent is standing for defined classes; case-specific consent is tied to a named case/facts. B. General consent applies only to Union Territories. C. General consent comes from courts; specific consent comes from Parliament. D. There is no legal difference.

Answer: A.

Explanation: [FACT] Scope, conditions and timing of the consent instrument determine its effect.

MCQ 18

According to *Kazi Lhendup Dorji*, withdrawal of consent:

- A. Retrospectively voids every act of investigation B. Does not automatically terminate investigations validly begun before withdrawal C. Gives CBI permanent jurisdiction over all future State cases D. Removes the need for a police report

Answer: B.

Explanation: [FACT] The rule is prospective and must not be enlarged into a general future-investigation power.

MCQ 19

The *CPDR* Constitution Bench held that:

- A. Parliament alone may order a CBI investigation B. Every allegation against State police must go to CBI C. SC/HC may exceptionally direct CBI investigation without State consent under Articles 32/226 D. State consent is never required under section 6

Answer: C.

Explanation: [FACT] Constitutional judicial review supplies a separate route, to be used sparingly and cautiously.

MCQ 20

The safest reading of *Fertico Marketing* is:

- A. Later consent is constitutionally prohibited B. Consent defects are always irrelevant C. CBI may investigate any State employee without authority D. Its result was fact-specific and does not establish that later consent always cures absence of consent

Answer: D.

Explanation: [FACT] The consent rider, manner in which State servants emerged, later consent and pleaded prejudice were material.

MCQ 21

The 2024 Supreme Court judgment in *State of West Bengal v Union of India* cited here:

A. Rejected a preliminary maintainability objection but did not decide merits B. Finally upheld every challenged CBI investigation C. Declared CBI unconstitutional D. Abolished section 6 consent

Answer: A.

Explanation: [FACT] The Court expressly limited the decision to the preliminary objection.

MCQ 22

The central principle of *Alok Kumar Verma* for Director protection is:

A. The Director is immune from all supervision B. Divesting powers may have transfer-equivalent effect and cannot evade committee protection C. Only a written transfer order can affect tenure D. The President alone selects the Director

Answer: B.

Explanation: [FACT] The Court focused on the substance and effect of the action.

MCQ 23

Dr Jaya Thakur (2023) held that:

A. The 2021 amendment was wholly unconstitutional B. Every Director is entitled to five years C. The extension framework is valid, but its statutory conditions must govern each extension D. Written reasons are unnecessary

Answer: C.

Explanation: [FACT] Validity of the framework and legality of a particular extension are separate inquiries.

MCQ 24

The “caged parrot” phrase should be used in an answer as:

A. The text of DSPE Act section 4 B. A binding test invalidating all CBI reports C. Proof of interference in every case D. Judicial criticism/context, with enforceable safeguards traced to actual statutes and holdings

Answer: D.

Explanation: [LIMIT] The metaphor captures a legitimacy concern; it is not a substitute for ratio or proof.

MCQ 25

Under Lokpal Act section 20, complaints selected for preliminary inquiry concerning Group A-D public servants are routed:

A. To CVC in the manner specified by the Act B. Only to State police C. Automatically to ED D. Directly to Parliament

Answer: A.

Explanation: [FACT] The Act then distinguishes how CVC handles Group A-B and Group C-D matters.

MCQ 26

Which is correct after *Thommandru Hannah Vijayalakshmi*?

A. A PE must determine guilt. B. PE is not mandatory before every corruption FIR; a Regular Case may be directly registered when cognizable offence information is disclosed. C. CBI can never use source information. D. PE is an enforceable right of every accused.

Answer: B.

Explanation: [FACT] PE remains useful in an appropriate case but is not a compulsory precondition or a defence entitlement.

MCQ 27

Which institution finally determines criminal guilt?

A. CVC B. CVO C. The competent court after due process D. CBI

Answer: C.

Explanation: [FACT] Investigation and advice produce inputs; adjudication and conviction belong to the court.

MCQ 28

Which statement correctly separates CBI and ED?

A. CBI exercises every power under PMLA. B. ED is a wing of CBI. C. ED needs State consent under DSPE section 6 for every PMLA action. D. CBI may investigate a competent predicate offence, while ED separately exercises PMLA powers over money laundering.

Answer: D.

Explanation: [FACT] Overlapping facts do not merge statutory mandates.

MCQ 29

NIA differs from CBI primarily because NIA:

A. Operates under the NIA Act's scheduled-offence architecture B. Is supervised by CVC for every case C. Was created by the 1963 CBI resolution D. Has no police powers

Answer: A.

Explanation: [FACT] The NIA Act supplies a distinct central-investigation route for scheduled offences.

MCQ 30

A departmental CVO is best understood as:

A. A general police station B. An internal vigilance node connecting preventive/disciplinary work with the CVC framework C. A constitutional authority superior to CVC D. The final criminal court

Answer: B.

Explanation: [FACT] CVOs assist vigilance administration but do not acquire the full police powers of DSPE.

MCQ 31

Which reform best combines independence with accountability?

A. Abolition of all judicial review B. Unlimited executive power to transfer investigators C. Transparent case-allocation safeguards plus protected operational confidentiality and audit D. Complete secrecy with no reporting

Answer: C.

Explanation: [ANALYSIS] Insulation must coexist with lawful review, reason-giving and aggregate reporting.

MCQ 32

Which statement on State consent is most accurate?

A. It is absolute even against a High Court order. B. It applies only to economic offences. C. It is irrelevant because CBI is a Union agency. D. It governs the ordinary DSPE State-area route but is qualified by constitutional-court power and precedent on pending cases.

Answer: D.

Explanation: [FACT] This formulation preserves both section 6 federalism and judicial review.

MCQ 33

CVC's inquiry-related civil-court powers include:

- A. Summoning persons and requiring document production B. Sentencing an accused to imprisonment C. Overriding a trial judgment D. Registering every FIR in India

Answer: A.

Explanation: [FACT] Procedural powers for inquiry do not make CVC a criminal court.

MCQ 34

Which statement about the CBI Director of Prosecution is correct?

- A. The officer appoints the CBI Director. B. Central Government appoints on CVC recommendation, and the officer works under overall supervision and control of the CBI Director. C. The post is filled by State Governors. D. The post has no statutory tenure protection.

Answer: B.

Explanation: [FACT] DSPE Act section 4BA also provides a minimum two-year tenure.

MCQ 35

For DSPE posts of Superintendent of Police and above, the CVC-chaired committee:

- A. Conducts criminal trials B. Replaces the section 4A Director committee C. Recommends appointment and tenure-related decisions after consulting the Director D. Requires approval from every State

Answer: C.

Explanation: [FACT] Section 4C creates this separate senior-personnel mechanism.

MCQ 36

For a Mains answer on CBI federalism, the strongest structure is:

- A. State that either Union or States have absolute power B. Begin and end with the "caged parrot" phrase C. List allegations without law D. Claim -> sections 5-6 -> named cases -> federal analysis -> qualified reform

Answer: D.

Explanation: [ANALYSIS] The structure converts description into authority-backed evaluation.

E. Remedial MCQs - 12 Questions

Remedial MCQ 1

A student writes: "CBI is a statutory body created by the DSPE Act." What is the best correction?

- A. CBI was created by the 1963 resolution; DSPE is the statutory police establishment under the 1946 Act. B. CBI was created by the CVC Act. C. CBI is a constitutional body. D. The statement is fully correct.

Answer: A.

Explanation: Separate organisation from statutory police establishment.

Remedial MCQ 2

"CVC superintendence" permits CVC to:

- A. Order automatic conviction B. Supervise relevant processes but not dictate a particular case's investigation or disposal manner C. Ignore the section 8 proviso D. Write the final judgment

Answer: B.

Explanation: The case-dictation prohibition is a central independence safeguard.

Remedial MCQ 3

Which proposition correctly follows from *Kazi Lhendup Dorji*?

A. Consent can never be withdrawn. B. Withdrawal authorises all new CBI cases. C. Withdrawal does not retrospectively terminate investigations validly begun under earlier consent. D. State police cease to exist.

Answer: C.

Explanation: The holding protects continuity of already instituted investigations, not unlimited future jurisdiction.

Remedial MCQ 4

A High Court orders CBI investigation without State consent in an exceptional rights case. The authority comes from:

A. DoPT administrative control B. CVC annual report C. Deemed general consent D. Article 226 constitutional power as recognised in *CPDR*

Answer: D.

Explanation: Court direction is not a disguised section 6 consent route.

Remedial MCQ 5

Which condition belongs to the 2021 Director-extension framework?

A. One-year-at-a-time extension on committee recommendation, public interest and recorded reasons B. Oral reasons by DoPT alone C. Automatic five-year tenure from day one D. No aggregate ceiling

Answer: A.

Explanation: Every annual extension requires statutory satisfaction; five years is only the aggregate maximum.

Remedial MCQ 6

For a Lokpal-referred DSPE investigation, the Lokpal:

A. Becomes the State police chief B. Has special statutory superintendence but cannot dictate investigation/disposal in a particular manner C. Decides guilt itself D. Abolishes CVC

Answer: B.

Explanation: Section 25 combines special supervision with an express non-dictation safeguard.

Remedial MCQ 7

An FIR by CBI means:

A. State consent can never be questioned B. Conviction is certain C. The formal investigation threshold is crossed, not that guilt is proved D. CVC has imposed a penalty

Answer: C.

Explanation: Allegation, FIR, charge sheet and conviction are different stages with different thresholds.

Remedial MCQ 8

Why does this package not state how many States currently withhold general consent?

A. Such data can never be published. B. State consent is irrelevant. C. No State can withdraw it. D. The count is transient and must be verified against a date-specific official source.

Answer: D.

Explanation: [LIMIT] Durable notes should not freeze a volatile number without live official evidence.

Remedial MCQ 9

When a covered organisation disagrees with CVC advice, the accountability device is:

- A. Written reasons communicated to CVC B. Automatic imprisonment C. A fresh constitutional amendment D. State consent

Answer: A.

Explanation: Reason-giving enables institutional scrutiny while preserving competent-authority responsibility.

Remedial MCQ 10

Which trio belongs to the CBI Director selection committee?

- A. President, Speaker, Attorney General B. PM, Lok Sabha LoP/substitute, CJI/nominee C. PM, Home Minister, CVC D. CVC, CAG, UPSC Chairperson

Answer: B.

Explanation: Do not import the CVC appointment committee into DSPE section 4A.

Remedial MCQ 11

Which pairing is correct?

- A. CVC - general criminal trial B. NIA - PMLA C. CBI/DSPE - notified offences and DSPE jurisdiction; ED - PMLA money-laundering field D. ED - DSPE Act

Answer: C.

Explanation: Each body's power must be traced to its own governing law.

Remedial MCQ 12

Who gives the final determination of criminal guilt?

- A. CBI Director B. Media C. CVC D. Competent court

Answer: D.

Explanation: The presumption of innocence continues through investigation and prosecution.

Visual 74 - MCQ Rotation Audit

Original MCQs 1-36:

A B C D | A B C D | A B C D | A B C D | A B C D
| A B C D | A B C D | A B C D | A B C D

Remedials 1-12:

A B C D | A B C D | A B C D

Continuous total:

48 markers = (A B C D) repeated 12 times

Caption: The correct option never repeats consecutively and the rotation continues across the original/remedial boundary.

PYQS AND ANSWER PRACTICE

PYQ, Practice and Solved Workbook

A. PYQ Routing Audit

[FACT] The local direct-owner and cross-cutting routing ledgers, topic owners, recent Polity packages and official papers were searched for CVC/CBI-linked questions.

Visual 71 - Verified PYQ Coverage

Year/paper	Question	Routing status	Treatment
2021 GS-II Q11	CBI jurisdiction, State consent and federal character	Verified cross-cutting Polity PYQ	Fully solved below
2026 Prelims GS-I Q63, Set A	Organisation-function-controlling Ministry matching	Verified official paper; provisional key only in local control ledger	Exact question reproduced; deliberately unsolved

Caption: No additional question is labelled as a direct verified PYQ merely because it is thematically similar.

[LIMIT] The 2026 key in the local audit trail is provisional and records no answer letter. This package neither infers an answer from a provisional count nor resolves individual rows indirectly.

B. Verified Mains PYQ - 2021 GS-II Q11

Question: “The jurisdiction of the Central Bureau of Investigation regarding lodging an FIR and conducting a probe within a particular State is being questioned by various States. However, the power of States to withhold consent to the CBI is not absolute. Explain with special reference to the federal character of India.” **15 marks | 250 words |**
Directive: Explain

Visual 72 - PYQ Demand Map

PART 1: Why State consent exists
 DSPE sections 5-6 + State police field
 |
 PART 2: Why it is not absolute
 SC/HC constitutional power + pending-case rule
 |
 PART 3: Federal evaluation
 State autonomy + rights + judicial review
 |
 PART 4: Balanced conclusion
 exceptional court power + cooperative protocols

Caption: The question asks for a qualified federal explanation, not a defence of either unlimited Union power or an absolute State veto.

Model Solution

The CBI is an executive-created organisation, while its core police powers arise from the Delhi Special Police Establishment Act, 1946. [FACT] Sections 5 and 6 reflect India’s federal structure: the Central Government may extend DSPE powers to a State area, but their ordinary exercise requires the State Government’s consent. This respects “police” and “public order” as State List subjects.

Consent may be general for defined classes of cases or case-specific. [FACT] A State may prospectively withdraw general consent, thereby requiring a fresh legal basis for new investigations. However, the veto is not absolute for three reasons.

First, [FACT] in *Kazi Lhendup Dorji v CBI* (1994), the Supreme Court held that later withdrawal did not terminate investigations validly commenced while consent operated; CBI could complete them and submit its police report.

Second, [FACT] in *State of West Bengal v Committee for Protection of Democratic Rights* (2010), a Constitution Bench held that High Courts under Article 226 and the Supreme Court under Article 32 may direct a CBI investigation without State consent. Such power flows from the Constitution, not section 6, and protects fundamental rights and judicial review. [LIMIT] The Court required sparing, cautious and exceptional use; routine transfer would itself erode federal balance and State-police responsibility.

Third, the precise terms and timing of consent matter. [FACT] *Fertico Marketing* (2020) reached a fact-specific result and cannot be converted into a universal rule that later consent always cures a defect.

[ANALYSIS] Thus, Indian federalism creates neither an unchecked central police nor an unreviewable State shield. The preferred equilibrium is State consent in the ordinary route, constitutional-court intervention in exceptional cases, and transparent Union-State protocols for investigations crossing jurisdictions.

Why this earns marks: It explains sections 5-6, distinguishes general and specific consent, uses Kazi Lhendup Dorji and CPDR for the two qualifications, and reaches a federal rather than partisan conclusion.

How to improve this answer: Compress the consent history into three legal steps-ordinary State consent, survival of valid pending cases, and exceptional constitutional-court direction-then use the final 40 words for federal evaluation.

Examiner Value Addition

- Use “qualified State veto,” not “State consent is irrelevant.”
- Name sections 5-6 before citing *CPDR*.
- Distinguish pending cases from new cases after withdrawal.
- End with cooperative federalism and rights-protecting judicial review.

C. Verified Prelims PYQ - 2026 GS-I Q63 (Controlled Unsolved)

63. With reference to the organisations under the Government of India, consider the following details:

Sl. No.	Organisation	Function	Controlling Union Ministry
1.	Central Economic Intelligence Bureau (CEIB)	To coordinate between various law enforcement agencies	Ministry of Home Affairs
2.	Serious Fraud Investigation Office (SFIO)	To investigate complex corporate frauds	Ministry of Finance
3.	Central Bureau of Investigation (CBI)	To preserve values in public life and ensure the health of the national economy	Ministry of Personnel, Public Grievances and Pension

In how many of the above rows are the given details correctly matched? (a) 1 (b) 2 (c) 3 (d) None

Visual 73 - How to Audit a Matching Question Without Guessing

FOR EACH ROW, VERIFY THREE INDEPENDENT ELEMENTS

organisation identity
+
officially assigned function
+
current administrative ministry/department
=
row-level conclusion

Only then count correct rows.

Caption: A familiar function cannot compensate for a wrong ministry, and a correct ministry cannot compensate for an inaccurate mandate.

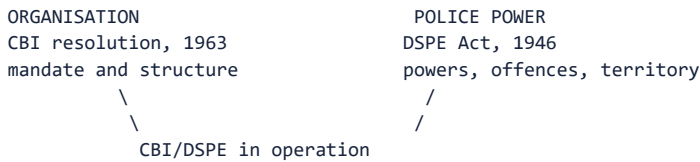
[LIMIT] **Resolution withheld:** the official paper wording is verified, but the available local answer-key control is provisional and contains no recorded answer letter. No option, count or row-wise conclusion is supplied here.

F. Original Solved Mains Practice - 8 Questions

Solved Mains 1 - 10 Marks / 150 Words

“The CBI’s organisational birth and its investigative powers arise from different legal instruments.” Explain.

Visual 75 - Two-Layer Thesis



Caption: The distinction prevents the common error of calling CBI itself a statutory body created by the DSPE Act.

Model solution:

The Central Bureau of Investigation is a Union investigative organisation, but its legal identity is hybrid.

[FACT] The Government of India established CBI through a Home Ministry resolution dated 1 April 1963. The resolution organised a wider bureau covering investigation and anti-corruption, economic offences, special crimes and related work. Therefore, no standalone “CBI Act” created the organisation.

[FACT] Its core police powers are principally exercised through the Delhi Special Police Establishment constituted under the DSPE Act, 1946. Section 2 supplies the Union Territory baseline; section 3 requires notified offence classes; sections 5-6 govern extension to State areas and State consent. The DSPE Act also provides the superintendence, Director-selection, tenure and senior-appointment architecture.

[ANALYSIS] Thus, executive creation explains organisational form, while statute supplies coercive authority and limits. An executive resolution cannot by itself override federal consent, criminal procedure or judicial safeguards.

[LIMIT] Calling CBI “non-statutory” should not imply that its investigators act without statutory power. The precise formulation is: **CBI is executive-created; DSPE police powers are statutory.**

Conclusion: A dedicated CBI law may improve institutional clarity, but until enacted, answers must preserve this two-layer legal identity.

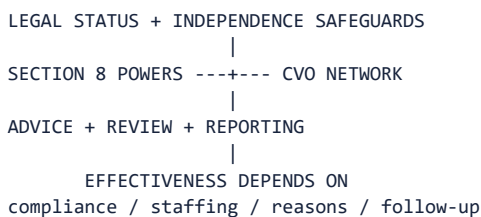
Why this earns marks: It preserves the hybrid identity: executive-created CBI organisation, statutory DSPE police power and federal limits.

How to improve this answer: In 150 words, use a two-column creation-versus-power distinction and omit organisational branches unless the question asks for them.

Solved Mains 2 - 15 Marks / 250 Words

Examine whether the CVC is an effective “apex vigilance institution” despite being primarily advisory and supervisory.

Visual 76 - CVC Effectiveness Test



Caption: Formal power creates capacity; organisational compliance converts capacity into outcome.

Model solution:

The CVC Act, 2003 makes the Central Vigilance Commission the statutory apex of the Union vigilance framework, but not a general anti-corruption police force.

[FACT] Its institutional strength lies in a multi-member Commission, committee-based presidential appointment, fixed tenure, protected removal, post-tenure employment restrictions, expenditure charged on the Consolidated Fund of India and annual reporting to Parliament.

Operationally, [FACT] section 8 gives CVC superintendence over DSPE investigations under the Prevention of Corruption Act, constrained direction power, complaint/reference inquiry routes, review of investigations and

prosecution-sanction applications, advice to covered central organisations and supervision of vigilance administration. Through CVOs, it can combine preventive vigilance with departmental follow-up.

However, its model is deliberately bounded. It cannot dictate how a named case must be investigated or disposed of, conduct every criminal investigation itself, impose criminal guilt, or operate as a universal ombudsman. [FACT] Its advice is not automatically binding; the organisation may disagree after recording and communicating reasons.

[ANALYSIS] Advisory status is not necessarily weakness. It preserves departmental responsibility and avoids merging investigator, prosecutor and adjudicator. Yet effectiveness falls when reasons are formulaic, appointments or staffing are delayed, CVOs lack functional independence, prosecution sanction is slow, or aggregate reporting does not produce legislative scrutiny.

Way forward: strengthen time-bound reasoned compliance, professional CVO protection, digital vigilance analytics, public aggregate reporting and follow-up audit, while retaining the prohibition on case-specific dictation.

Conclusion: CVC is structurally significant but outcome-dependent-an oversight hub whose credibility rests on the quality of advice, compliance and transparent institutional response.

Why this earns marks: It evaluates CVC through legal status, section 8 mechanisms, advisory limits and practical compliance rather than using a slogan.

How to improve this answer: Rank CVC strengths and limits under authority, independence and follow-up; attach one practical reform to each diagnosed weakness.

Solved Mains 3 - 15 Marks / 250 Words

Analyse the constitutional and statutory limits on State power to deny CBI jurisdiction.

Visual 77 - Qualified State Veto

ORDINARY ROUTE	QUALIFICATIONS
DSPE ss.5-6	pending valid cases
State-area extension	SC Article 32
+ State consent	HC Article 226
+-----	-----+
FEDERAL BALANCE	

Caption: State consent is legally meaningful but not superior to constitutional judicial review.

Model solution:

State control over police and public order is a core federal feature. The DSPE Act translates that feature into an ordinary territorial gate for CBI/DSPE investigations.

[FACT] Section 5 authorises the Central Government to extend DSPE powers to a State area, while section 6 requires the State Government's consent. Consent may be general for defined categories or specific to a case. A State may prospectively withdraw general consent, ordinarily requiring fresh authority for new investigations.

The power is nevertheless qualified. First, [FACT] *Kazi Lhendup Dorji v CBI* held that withdrawal did not retrospectively terminate investigations validly begun when consent existed. The agency could complete investigation and submit the police report.

Second, [FACT] the Constitution Bench in *State of West Bengal v CPDR* held that the Supreme Court and High Courts may direct a CBI probe without State consent under Articles 32 and 226. Such authority arises from constitutional judicial review and protection of fundamental rights, not from a fiction of consent. [LIMIT] The power must be used sparingly, cautiously and exceptionally, so State police are not routinely displaced.

Third, consent disputes remain fact-sensitive. [FACT] *Fertico Marketing* cannot be generalised into an automatic post-facto cure. Likewise, the 2024 *West Bengal v Union* ruling cited here rejected only a maintainability objection and did not settle merits.

[ANALYSIS] An absolute State veto could shield rights violations; an unchecked Union police could undermine the State List. Federalism therefore requires a rule-bound ordinary consent route, exceptional judicial correction and cooperative protocols for inter-jurisdictional crime.

Conclusion: The State's power is substantial, prospective and federal-but neither retrospective over every pending case nor immune from constitutional review.

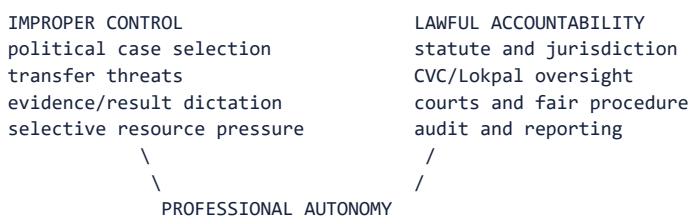
Why this earns marks: It states the ordinary consent rule, pending-case qualification and constitutional-court exception with narrow case holdings.

How to improve this answer: Draw the answer around sections 2, 5 and 6, then give one sentence each to pending investigations and court-ordered probes.

Solved Mains 4 - 20 Marks / 300 Words

"The central challenge is not to make CBI unaccountable to government, but to make investigation independent of improper control while keeping the agency answerable to law." Critically analyse.

Visual 78 - Insulation with Answerability



Caption: Institutional design must remove outcome manipulation without creating a secret, self-judging police authority.

Model solution:

CBI occupies a difficult constitutional position: it handles nationally significant investigations, yet its organisation is executive-created, its administration lies within the Union executive and its State-area powers are federally conditioned.

Several safeguards support independence. [FACT] *Vineet Narain* led to statutory CVC supervision over PC Act investigations, a protected minimum tenure and committee-based appointment/transfer safeguards. DSPE section 4A disperses Director selection across the Prime Minister, Opposition and judiciary. Section 4B protects a two-year minimum and requires committee consent for transfer. [FACT] *Alok Verma* prevented evasion of this protection through transfer-equivalent divestment of powers. The 2021 extension regime requires public interest, committee recommendation, written reasons and annual renewal within a five-year aggregate ceiling.

Yet vulnerabilities remain. [ANALYSIS] Executive influence may operate through staffing, deputation, budget, promotion, selective references or public narratives even without a written direction. State-consent withdrawals can fragment investigations. Sanction delays and vacancies can weaken timelines. Perceived selective use damages public trust even where evidence in a particular case is sound.

However, complete insulation from government would be constitutionally undesirable. Police power requires legal jurisdiction, financial audit, service regulation, prosecution scrutiny and judicial review. CVC and Lokpal superintendence are themselves bounded: neither may dictate a particular case result. Parliament must receive system-level information, while courts ensure due process and the accused retains the presumption of innocence.

Reform should therefore:

1. enact a debated CBI law defining organisation, mandate and accountability;
2. protect a professional multidisciplinary cadre and functional budget;
3. make case allocation, recusals and transfer reasons auditable;
4. develop statutory-consistent federal consent protocols;
5. strengthen aggregate parliamentary reporting without prejudicing live cases; and
6. penalise unlawful interference while preserving lawful supervision.

Conclusion: The goal is neither "CBI under command" nor "CBI beyond control," but **operationally insulated, legally bounded and publicly accountable investigation.**

Why this earns marks: It separates supervision, administration and investigative judgment and gives reforms matched to each interference risk.

How to improve this answer: Use a three-layer grid-CVC corruption supervision, Central Government other superintendence, Director operational control-and avoid saying any actor may dictate case outcomes.

Solved Mains 5 - 10 Marks / 150 Words

Differentiate the roles of Lokpal, CVC, CBI and departmental CVOs in processing corruption allegations.

Visual 79 - Role-to-Output Chain

LOKPAL	-> complaint route and statutory directions
CVC	-> vigilance supervision, advice and referral
CBI/DSPE	-> police investigation and final report
CVO	-> departmental vigilance and preventive control
COURT	-> guilt determination

Caption: Complementarity arises because each institution produces a different legal output.

Model solution:

The four institutions form an interconnected but non-hierarchical anti-corruption network.

[FACT] Lokpal receives complaints against persons covered by the Lokpal Act. It may order preliminary inquiry or investigation through its Inquiry Wing or an agency including DSPE. Section 20 routes specified Group A-D preliminary inquiries to CVC, and section 25 gives Lokpal special superintendence over DSPE matters referred by it.

[FACT] CVC is the apex Union vigilance institution. It supervises relevant DSPE anti-corruption investigations, reviews investigation and sanction progress, advises covered organisations and oversees vigilance administration. It cannot dictate a named case's manner of disposal.

[FACT] CBI/DSPE exercises police powers: registration, evidence collection, searches/arrests where lawful and submission of charge sheet or closure report.

CVOs are departmental nodes for preventive vigilance, complaint examination, system correction and disciplinary coordination.

[ANALYSIS] The institutions are complementary because complaint scrutiny, vigilance advice, police investigation, prosecution and adjudication require different safeguards.

Conclusion: Treating one as the universal superior of the others obscures statutory routes and produces incorrect UPSC answers.

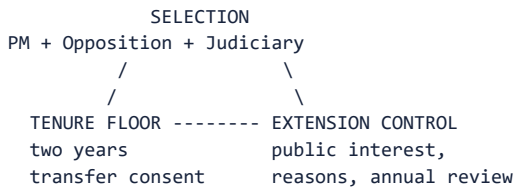
Why this earns marks: It maps Lokpal referral, CVC oversight, CBI investigation and prosecution sanction without inventing a single hierarchy.

How to improve this answer: Write the referral chain chronologically and identify the legal authority at every hand-off; reserve overlap criticism for the evaluation paragraph.

Solved Mains 6 - 15 Marks / 250 Words

Discuss how the appointment and tenure architecture of the CBI Director attempts to reconcile continuity with democratic accountability.

Visual 80 - Director Safeguard Triangle



Caption: Selection dispersion, tenure security and conditional continuation address different risks.

Model solution:

Continuity in a premier investigation agency protects ongoing cases from disruption, while democratic accountability prevents the Director from becoming an unreviewable authority.

[FACT] DSPE Act section 4A requires appointment by the Central Government on recommendation of a committee comprising the Prime Minister, Lok Sabha Leader of Opposition-or statutory substitute-and Chief Justice of India or nominee. The cross-institutional design reduces unilateral appointment.

[FACT] A CVC-chaired committee prepares the eligible IPS panel on seniority, integrity and anti-corruption investigation experience, considering the outgoing Director's views. Section 4B then provides a minimum two-year tenure and requires prior section 4A committee consent for transfer.

The judiciary has protected the substance of tenure. [FACT] *Alok Kumar Verma* treated divestment of powers as having transfer-like effect and required committee consideration.

The 2021 amendment introduced conditional continuation beyond the initial tenure: [FACT] each extension must be in public interest, based on section 4A committee recommendation, supported by written reasons, granted one year at a time and remain within an aggregate five-year ceiling. *Dr Jaya Thakur* upheld this framework.

[ANALYSIS] The design creates continuity but raises two concerns: repeated annual extensions may create perceived dependence on reappointment, and "public interest" can become formulaic unless reasons receive genuine scrutiny.

Reform: publish non-sensitive reasons, initiate succession planning early, maintain objective performance criteria and preserve judicial review.

Conclusion: The two-year floor protects independence; committee-based, reasoned annual extension protects accountability. Neither the floor nor the ceiling is a personal entitlement.

Why this earns marks: It distinguishes investigation from prosecution and trial while locating section 17A and section 19 at different stages.

How to improve this answer: Separate approval to begin decision-linked inquiry, investigation evidence, sanction to prosecute and judicial adjudication into four numbered stages.

Solved Mains 7 - 15 Marks / 250 Words

Compare CBI with ED, NIA and State anti-corruption agencies. Why is legal-domain separation essential?

Visual 81 - Domain Separation

CBI/DSPE -> notified corruption/economic/special crimes
ED -> FEMA/PMLA enforcement and money laundering
NIA -> NIA Act scheduled offences
State ACB-> State-public-servant corruption / State police field

Same transaction can create parallel lawful proceedings,
but no agency inherits another statute's powers.

Caption: Factual overlap allows coordination; it does not erase jurisdictional boundaries.

Model solution:

India's enforcement system is functionally specialised rather than organised around a single national police body.

[FACT] CBI is an executive-created organisation whose core police powers come through the DSPE Act. It handles notified anti-corruption, economic and selected special-crime work, subject to territorial consent or court-order rules.

ED is a separate Union agency operating under FEMA and the Prevention of Money Laundering Act. Its money-laundering, attachment and related powers cannot be attributed to CBI merely because CBI investigates economic offences.

NIA operates under the NIA Act's scheduled-offence and national-security architecture. Its central assumption of investigation follows a different statute and cannot be used to explain DSPE section 6.

State ACBs/vigilance police ordinarily investigate corruption involving State public servants under State police jurisdiction and applicable criminal law. They are not subordinate branches of CBI.

[ANALYSIS] A single transaction may involve bribery, corporate fraud, a scheduled offence and laundering of proceeds. Parallel agencies may therefore act, but each needs its own offence nexus, territorial authority and procedure. Domain separation:

- protects federalism and legality;
- prevents forum shopping and duplicated coercion;
- clarifies evidence-sharing and prosecution responsibility;
- enables judicial review of each power; and
- helps the accused and public understand legal thresholds.

Way forward: create formal inter-agency coordination protocols, common digital evidence standards and lead-agency rules while preserving statutory independence.

Conclusion: Coordination should connect jurisdictions, not collapse them. The correct question is never "which agency is strongest?" but "which statute authorises which act?"

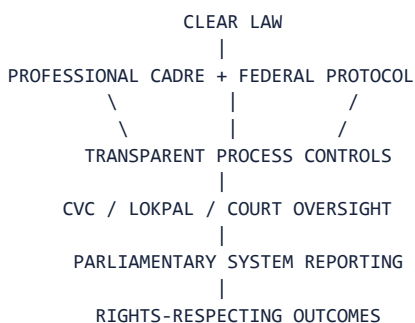
Why this earns marks: It compares bodies by exact source, mandate, coercive power and accountability, avoiding acronym-based generalisation.

How to improve this answer: Use a compact comparison table and include only institutions demanded; do not let ED/NIA detail displace the CVC-CBI core.

Solved Mains 8 - 20 Marks / 300 Words

Propose a reform framework for CVC-CBI that strengthens anti-corruption effectiveness without weakening federalism, due process or parliamentary accountability.

Visual 82 - Reform Architecture



Caption: Durable reform aligns mandate, capacity, federal consent, due process and public accountability.

Model solution:

Anti-corruption reform must address both ineffective investigation and misuse of investigative power. A stronger CBI without federal or rights safeguards may centralise coercion; a stronger consent veto without accountability may obstruct serious cases.

1. Clear legislative mandate: [ANALYSIS] Parliament should debate a dedicated CBI law defining organisational status, offence domain, internal allocation, appointment machinery, protected functional budget, reporting and

unlawful-interference offences. It must preserve DSPE section 6 principles and constitutional-court powers.

2. Professional capacity: Build a stable multidisciplinary cadre in policing, forensic accounting, cyber evidence, procurement and prosecution. Deputation should remain available for diversity but should not create chronic dependence. Fixed investigator tenures and documented transfers can protect continuity.

3. Federal protocol: Union and States should adopt a legally consistent model for general/case-specific consent, time-bound requests, reasons, joint teams and evidence transfer. [LIMIT] An executive protocol cannot override sections 5-6; it can only make their exercise predictable.

4. CVC effectiveness: Strengthen CVO functional protection, sanction-delay dashboards, preventive-vigilance analytics, reasoned disagreement with CVC advice and follow-up audits. Preserve the statutory bar on directing a case's particular result.

5. Transparent investigation governance: Use auditable case allocation, written recusals, conflict registers and non-sensitive publication of policy criteria. Operational secrecy should protect evidence and witnesses, not hide arbitrary selection.

6. Due process: Ensure jurisdictional review, section 17A/19 compliance where applicable, time-bound PE/FIR decisions, disclosure obligations, presumption of innocence and effective judicial remedies. Investigative speed cannot substitute for evidentiary quality.

7. Parliamentary accountability: CVC's annual report should present comparable aggregate indicators on investigation stages, sanction delays, systemic risks and action on advice. Committees may scrutinise institutions without demanding prejudicial detail from live cases.

8. Independent review: Periodic expert review of institutional design and public reporting can test whether safeguards reduce both delay and interference.

Conclusion: The reform objective is a **federal, professional and rights-bound national investigation capacity**-independent in evidence and case judgment, accountable in jurisdiction, resources, reasons and outcomes.

Why this earns marks: It uses Vineet Narain, CPDR, Common Cause and statutory safeguards to produce a balanced autonomy-accountability answer.

How to improve this answer: Structure reforms by statute, appointment/tenure, investigation autonomy and legislative reporting, then qualify against unchecked-agency risk.